

Mulbarton Primary Audit and Visit Report 25.02.19 and 23.04.19 (afterschool walk)

Due to unforeseen circumstances Bev was unable to attend the 25.02.19 meeting. The visit/meeting was completed with the chair of governors and premises manager. There is already good GDPR practice observed and discussed during this meeting: electronic signing in system; iPad routines and security minimises the risk of a data breach as the school are using remote/profile manager, which limits images being downloaded from the iPad when not connected to the school network. Memory sticks are still used although these are being phased out with improvements to the network. Office365/OneDrive/SharePoint will then be used for storing/sharing data securely. There has also been a review of security with external doors now being fitted with key pads.

The meeting was useful in discussing and linking governance with the GDPR project.

It was recommended the premises manager also has access to the DPE Knowledge Bank best practice areas, which included guidance and documentation on CCTV.

An afterschool walk was arranged and completed with Bev on 23.04.19.

Report type:	Mini school audit		
School:	Mulbarton Primary School	Date:	19.02.19 + 23.04.19
Staff member:	DPE: Stuart Lee HT: Bev Theobold, School Gov: Glynis Tucker Premises: Mark		
Policy	Type	Viewed/discussed	
	GDPR data protection policy	Yes	
	GDPR privacy statement	Yes	
	SAR procedure	Yes	
	Breach procedure	Yes	
	Consent forms	Yes	
	Retention schedule	Yes	
	Documents required	Yes	
Data mapping	Type		
	GDPRiS	Yes	
	DPE toolkit	Yes	
	Other (please specify):	Notes:	
Personal data	Explanation/concern	Action Point	Consent obtained

For example: Pupil photographs				Yes
Pupil photographs				Yes
Staff names				Yes
Staff photographs				Yes

Key actions check list

1	School walk	Action recommendations within the walks. Unable to complete the second walk, so offered to complete with Mark and Glynis after school.
2	DPE website and DPE best practice areas	Talked through DPE developments to the DPE best practice areas, including compliance check lists and online data breach and SAR log; Arrange for Mark to have access to the Knowledge Bank.
3	Governors and GDPR project team	Glynis to complete an internal after school walk. Glynis attended the meeting; Ensure reporting is at governor level; Governor to complete DPE e-learning training.
4	Data breach procedure and log	1. Check that staff are familiar with the DPE data breach procedure and; 2. Use the data breach/incident log to record centrally and ensure all staff understand the procedure for reporting a data breach (incident); 3. Consider assigning a governor who can support the school with internal walks/monitoring. Use the log to raise staff awareness and improve practice in school (Glynis to attend with SL for an after-school walk); 4. Encourage staff to self-regulate and check own data/folders. It's also useful to complete half termly/termly after school walks and feed back to staff findings. Please note: DPE now has an online log that can be used if preferred.
5	SAR Procedure and log	Check that key staff are familiar with SAR Procedure for the School. The SAR log can also be used for recording SARs centrally. Please note: DPE now has an online log that can be used if preferred.
6	CCTV	Download DPE CCTV policy and check against existing policy. Send Mark link to ICO guidance. Send to dpo@dataprotection.education for review. DPIA to support with the DPIA if needed.

7	Privacy statement(s)	Privacy statement for pupils and parents (completed)
9	Training	1. Key staff to complete GDPR e-learning training and then; 2. Consider all staff to complete GDPR e-learning training; 3. Governor (Glynis) to complete training; 4. Use staff meetings/briefings to raise staff awareness. Note (23.04.19): Bev had issues with staff accessing the DPE training module. Bev to try with another member of staff to identify if this is still an issue. 19 staff currently registered. SL to raise with DPE and possibly reregistering of staff required.
10	Data retention schedule	Continue to develop the school's data retention schedule and archiving of data. Guidance can be obtained from the DfE and IRMS toolkits: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1) Example of a school that has completed a schedule is: http://www.recreationroad.com/2014/wp-content/uploads/2018/07/Document-Retention-Schedule.pdf Example of a school that has a records management policy is: https://pulham.norfolk.sch.uk/Newsite/wp-content/uploads/2018/09/School-Records-Management-Policy.pdf DPE will be providing a record of processing tool that incorporates data retention shortly.
11	Technical security (network)	Discussed network and storing/archiving of data. Mark aware of structures but not necessarily what data is stored on the system. Need time to implement. School can identify what photos/videos are stored on the system and develop archived structure/filing system: Example of a naming convention that could be adopted for archiving videos/photos: Top level folder: School photo and video archives Sub folder: 2017-18 photo and video archive Sub level folder: Sept17-Theatre Trip You would basically name all trips/events for that school year and add to the sub folder for that academic year. The school would need to identify current methods for uploading etc and ensure all staff understand the system.

		As students leave year 6 the folders would be archived with limited access. You can then easily sort the photos to the ones you want to keep for archiving and historical purposes. This needs to be documented in your retention schedule.
12	Consent	Ensure consent aligns with data displayed in school (ongoing process).

Key points visit 1	Key points visit 2 and school walk (23.04.19)
Action recommendations made within the walk and within the best practice information above, including: • Reception area: Redact full name from student books at reception. • Back reception office: The school is in the process of moving the notice board from its current position to a less prominent position. The school is also reviewing data on display i.e. after school club. This data will be added to folders and staff will also review end of day routines. • Back reception office: Reminder that if staff are not occupying the office the external doors are to be closed/locked as if not, entrance to the office can be gained by the public/visitors. Around school: • Classrooms/displays/lists: • Ensure consistency and use of forename only around school. Where there is teaching and learning justification full name is acceptable. However, forename only is becoming standard practice in schools visited. • Move lists with child contacts so that they are not on public display by adding to the back of doors/files/cupboards. • Review the type of list on display i.e. 2018-19 class lists. • Allergy/medical lists: Do these need to be on display? School will review and consider adding to folders. • Medical room: Review of end of day routines and possibly moving the folder to the office or placing files in the cabinet. • SEND office: Head teacher is reviewing and removing any sensitive data over the summer. • PCs unlocked: Reminder to staff.	Headteachers office and consent with displays: Consider key code entry and checking to make sure there are no sensitive files not in cabinets and that cabinet is lockable; Check consent aligns with photos displayed with forename. <u>Afterschool walk 23.04.19</u> Note: IT – school has now entered in to a new IT contact with: SAIT.EDU.LTD. Walk observations: • Good storage in each classroom. Majority of classrooms had cupboards. Where there were no walk-in cupboards, classrooms either had lockable filing cabinets and/or cupboards that could be used for storing sensitive data. Where these are lockable staff should be encouraged to store securely. Deputies office: • Door wedged open. Sensitive files on shelves. Can these be added to cabinets? Reminder to staff to lock doors. Could consider key code entry? Laptops/Desktops: • Unlocked around school. Reminder to staff: Classrooms (items observed): • Accident books on display; • Allergy lists on display; • Video/photo consent 'No' lists on display; • Walk home alone lists on display;

- **Archived data:** Add a secure door and lock to the archived cupboard.
- **Printers:** School is moving to printer codes over the summer.
- **School has CCTV:** ICO guidance: be clearly visible and readable;
 - contain details of the organisation operating the system, the purpose for using the surveillance system and who to contact about the scheme (where these things are not obvious to those being monitored);
 - include basic contact details such as simple website address, telephone number or email contact; and
 - be an appropriate size depending on context, for example, whether they are viewed by pedestrians or car drivers.
 Signs do not need to say who is operating the system if this is obvious. All staff should know what to do or who to contact if a member of the public makes an enquiry about the surveillance system. Further guidance can be obtained from: <https://ico.org.uk/media/1542/cctv-code-of-practice.pdf>

Other actions:

- Review privacy notice for Photographer.
- Develop email best practice documentation.

- PP lists with DOB and gender on display;
- After school club lists;
- Home school communication book and filing left on desk;
- Assessment/data folders on display;
- Supply folder with outdated information;
- Behaviour folder (outdated) ;
- Some lists were on the back of cupboard doors;
- Could you develop folder system rather than placing sensitive data on the back of cupboard doors?

Staffroom:

- Care plans are placed in a folder. Staffroom is accessible to outside staff. School to review whether these should be placed in the cupboard.
- Nurture folders: Ascertained that these can be moved to the Nurture office. Archived Nurture folder – is this needed? Destroy if not.
- Trips folder – ascertained that this is no longer needed

Next steps:

- Encourage staff to self-regulate;
- Have a monthly focus;
- Develop end of day routines to ensure sensitive data is added to cupboards.